

Court No. - 37

Case :- WRIT - C No. - 40997 of 2017

Petitioner :- Gajendra Singh Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Agrawal

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner and Sri Pankaj Srivastava, learned counsel for the respondent/Electricity Department.

The petitioner was subjected to proceedings of theft of electricity by the lodging of a first information report on 16.05.2015 as informed by the learned counsel for the respondent/Electricity Department.

It is also stated that the petitioner deposited the compounding fee for the same before the concerned Magistrate.

The petitioner contends that there was no assessment and even otherwise the petitioner moved an objection on 11.07.2017 denying any allegations of theft and also contending that no electricity dues have to be paid by the petitioner. The Executive Engineer on 15.07.2017 had called upon the Sub Divisional Officer of the concerned area to submit a report in order to dispose off the grievance of the petitioner. Learned counsel has come up with the contention that till date the same has not been finalized and on the other hand the recovery proceedings are being pressed into service through the citation 25.05.2017 which is under challenge.

Keeping in view the nature of the submissions raised and the realization of the amount arising out of an alleged theft and assessment it would be appropriate that orders are passed by the Executive Engineer with regard to assessment as called upon by him through his letter in terms of Section 126 of the U.P. Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005 if not already passed. The petitioner shall be duly informed of the same. In the event the petitioner is satisfied with the decision he will proceed to deposit any amount which is then found to be recoverable from him and in the event he disputes the same it will be open to him to file an appeal under Section 127 of the Act. Consequently this writ petition is disposed off with the said observations. The recovery against the petitioner shall be subject to any order being passed by the Executive Engineer which shall be done within three weeks of the date of presentation of the certified copy of this order.

Order Date :- 6.9.2017

R./